

SUPREME COURT: QUEENS COUNTY

-----X Index No.:
PERCY LUMPKIN, Date purchased

Plaintiff(s),

Plaintiff designates

QUEENS

-against-

County as the place of Trial.

THE CITY OF NEW YORK,

The basis of the venue is
Plaintiffs Residence:

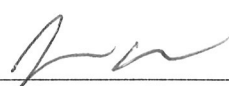
Defendant(s).

Plaintiff resides at:

65-10 DeCosta Avenue, 2nd Flr
Far Rockaway, NY 11692**SUMMONS WITH NOTICE**

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
December 13, 2016
James F. Ross, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; false arrest; false detention; false imprisonment and assault;

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from October 30, 2015 and the costs of this action.

SUPREME COURT: QUEENS COUNTY

-----X
PERCY LUMPKIN,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,

Defendant(s).
-----X

Plaintiff herein, by his attorneys, **ROSS and HILL**, complaining of the above named Defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Queens, City and State of New York.

2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The Police Department of The City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

5. On October 30, 2015 plaintiff's Notice of Claim was made and served upon the

defendant, said service occurring within 90 days of the incident giving rise to this law suit.

6. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

7. That this action is being commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim is based.

8. That on October 30, 2015 at approximately 8:00 pm, the defendants, negligently arrested the plaintiff even though plaintiff had not acted unlawfully.

9. That the arrest of plaintiff was without reasonable or probable cause and constituted a false arrest of plaintiff.

10. The incident as aforescribed resulted from the negligence of the defendant, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

11. The false arrest of plaintiff by defendant, its agents, servants and/or employees, caused plaintiff pain, suffering, humiliation and personal injury.

12. As a result of the foregoing, plaintiff sustained damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

13. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 12 hereof with the same force and effect as though fully set forth herein at length.

14. After falsely arresting plaintiff, police officers handcuffed plaintiff and restrained him and unlawfully detained plaintiff in police custody.

15. The stopping and unlawful detention of plaintiff was without any cause or justification.

16. The unlawful detention of plaintiff caused said plaintiff pain, humiliation, personal injury and suffering.

17. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 12 and 13 - 17 hereof with the same force and effect as though fully set forth herein at length.

19. That after falsely arresting plaintiff, plaintiff was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

20. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

21. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Yours, etc.,

A handwritten signature in dark ink, appearing to read 'J. Ross', with a stylized flourish at the end.

James F. Ross, Esq. OF

ROSS & HILL, ESQS.

Attorneys for Plaintiff

16 Court Street, 35TH Floor

Brooklyn, New York 11241

(718)855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

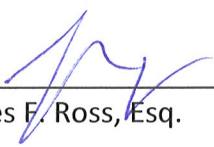
I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a Partner in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff(s) is that plaintiff(s) is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
December 13, 2016



James F. Ross, Esq.

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COUNTY OF QUEENS

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Plaintiff(s),

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THE CITY OF NEW YORK,

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SUMMONS & COMPLAINT

ROSS & HILL, PLLC.
Attorney for Plaintiff
16 Court Street
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Brooklyn, NY 11241
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